

4. 9:00 AM CASE NUMBER: C22-01790

CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50

***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON MOTION FOR DISCOVERY (TERMINATING SANCTIONS AGAINST PLAINTIFF)**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 26. If Line 26 is unopposed, then this CMC will be continued to September 22, 2026 at 8:30 a.m.

5. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON DEMURRER 2ND AMENDED COMPLAINT**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 16. Line 16 is vacated. This CMC is vacated. No appearance is required on March 25, 2026.

6. 9:00 AM CASE NUMBER: C23-02791

CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY DEFENSE COUNSEL YULI KAPLUNOVSKY SHOULD NOT BE HELD IN CONTEMPT FOR FAILURE TO APPEAR AT THE 8/5/25 FURTHER CASE MANAGEMENT CONFERENCE AND TRIAL SETTING CONFERENCE (CONTINUED FROM 12/16/25)

FILED BY:

TENTATIVE RULING:

This case is also scheduled for hearings in Lines 8, 12, and 13. The Court scheduled an Order to Show cause as to why Defendant JRT Freight LLC and Luis Martinez's counsel, Eliahu Kaplunovsky, should not be held in contempt for failing to appear at the CMC on August 5, 2025 and the Trial Setting Conference on December 16, 2025. The Court notes that Counsel Kaplunovsky had filed a Motion to be relieved as counsel on December 2, 2025. The Court discharges this Order to Show Cause.

7. 9:00 AM CASE NUMBER: N25-2112

CASE NAME: AMAN POHYAR VS. IBRAHIM SHARIFF

***EX PARTE PLAINTIFF'S EX PARTE APPLICATION FOR ORDER SHORTENED TIME DUE TO; DEFT AT ALL TIME NEVER PAID THE PROPERTY TAXES FOR FIVE YEARS**

FILED BY: POHYAR, AMAN

TENTATIVE RULING:

This tentative ruling applies to Lines 7 and 23. Plaintiff Aman Pohayr's ("Plaintiff") Motion to Set Hearing for an Unlawful Detainer Action is denied without prejudice. Plaintiff's *ex parte* application to set a hearing to require Defendant to pay property taxes is denied without prejudice.

Defendant Ibrahim Shariff has not made an appearance in this case, and has filed a Notice of Bankruptcy on December 4, 2025. The Notice of Bankruptcy operates to stay these proceedings, pending discharge. This matter is stayed pending discharge of Defendant Ibrahim Shariff's bankruptcy case. The Court has already set a Bankruptcy Review Hearing for September 4, 2026. Absent any other intervening hearings, the Parties are ordered to file a case management conference statement

at least five (5) days before the CMC to apprise the Court of the status of Defendant's bankruptcy case.

8. 9:00 AM CASE NUMBER: C23-02791

CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC

***FURTHER CASE MANAGEMENT CONFERENCE CONTINUED FROM 12/16/25**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Lines 12 and 13. Counsel are ordered to appear for the CMC.

Law & Motion

9. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)**

FILED BY: MILLER, RAYMOND R.

TENTATIVE RULING:

Summary

Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is **continued** to April 15, 2026 at 9:00 a.m.

Defendant is ordered to file a Proof of Service evidencing that this Motion was served on Plaintiffs at least five (5) court days before the hearing evidence proper and timely service of this motion pursuant to Cal. Code of Civ. Proc §1005(b). Defendant's Counsel shall also file a declaration explaining whether service was accomplished timely on Plaintiffs' counsel

Background

Plaintiffs voluntarily dismissed their complaint after Miller filed a special motion to strike pursuant to the anti-SLAPP motion. Following dismissal, Miller moved for attorney's fees and costs pursuant to the same statute. This Court granted that motion, awarding \$13,555 in attorney's fees and costs to Miller. Plaintiffs appealed.

On January 23, 2026, the Court of Appeal affirmed this court's order, and remitted this case back to the trial court. The Court of Appeal ordered that Miller may recover his costs on appeal pursuant to Rule 8.278(a)(1).

On November 18, 2025, Miller filed this Motion for attorney's fees and costs incurred on appeal pursuant to Cal. Code of Civ. Proc. § 425.15(c)(1), seeking \$30,000 in attorney's fees and \$1,022 in costs, based on 60 hours of work, billed at a rate of \$500.00 per hour. The Motion was supported by Notice, Memorandum of Points and Authorities and the Declaration of James O'Gallagher. However, the Court's register of actions does not show that Miller filed a proof of service evidencing service of